

Pier and Harbour Order (Herne Bay) Confirmation Act, 1952

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Pier and Harbour Order
(Herne Bay)
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CHAPTER xxvii

An Act to confirm a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 relating to Herne Bay.

[1st August 1952.]

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 is not of any validity or force whatever until confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the said Act as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as set out in the schedule to this Act shall be Confirmation and the same is hereby confirmed and all the provisions thereof of Order in in manner and form as they are set out in the said schedule shall schedule. from and after the passing of this Act have full validity and force.

2. This Act may be cited as the Pier and Harbour Order Short title. (Herne Bay) Confirmation Act 1952.

SCHEDULE

HERNE BAY PIER

Provisional Order to repeal the Orders relating to the undertaking known as the Herne Bay Pier to continue vested in the urban district council of Herne Bay the said undertaking to confer powers on the said Council with reference thereto and the maintenance management and improvement thereof and for other purposes.

PRELIMINARY

Short title.

1. This Order may be cited as the Herne Bay Pier Order 1952.

Commencement.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as the commencement of this Order.

Interpretation.

3. In this Order unless the context otherwise requires words and expressions to which by the enactments incorporated therewith or applied thereto respectively meanings are assigned have in this Order the same meanings and—

“ authorised rates ” means the rates which the Council are for the time being authorised to levy demand and recover in pursuance of this Order or any order made under section 25 (Revision of rates) of this Order ;

“ the Council ” means the urban district council of the district ;

“ the district ” means the urban district of Herne Bay ;

“ the general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the district ;

“ the Harbours Clauses Act 1847 ” means the Harbours Docks and Piers Clauses Act 1847 ;

“ the Minister ” means the Minister of Transport ;

“ the pier ” means the existing pier and works belonging to the Council and the land buildings plant property and conveniences connected therewith or any part thereof as the case may be ;

“ the pier revenue ” means all rates tolls dues rents and receipts or other revenue received by the Council in respect of the pier under the authority and provisions of this Order including the interest or other annual proceeds received by the Council on the investments representing or forming part of any authorised fund provided in connection with the undertaking ;

“ seaplane ” includes a flying boat and any other aircraft designed to manœuvre on the water ;

“statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture or debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or securities of the Council ;

“the undertaking” means the undertaking carried on by the Council at and in connection with the pier ;

“vessel” includes a seaplane on the surface of the water.

UNDERTAKERS

4. The Council shall be the undertakers for carrying this Order into execution.

5.—(1) The Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking and except sections 127 to 131 of the Lands Clauses Consolidation Act 1845) are hereby incorporated with this Order.

Incorporation of Lands Clauses Acts.

(2) For the purposes of the incorporation of the said Acts the expression “the special Act” in those Acts shall mean this Order.

6.—(1) In the application to this Order of the Harbours Clauses Act 1847 the expression “the special Act” shall mean this Order and the word “vessel” shall include a seaplane on the surface of the water:

Application of Harbours Clauses Act 1847.

Provided that nothing in the Harbours Clauses Act 1847 or this Order shall in any circumstances require or authorise the pier master or other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

(2) Sections 12 and 13 16 to 19 25 26 and 84 to 90 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

7. The undertaking as it exists at the commencement of this Order shall continue vested in the Council and be held and enjoyed by them.

Undertaking to continue vested in Council.

ACQUISITION OF LANDS

8. Subject to the provisions of this Order the Council may by agreement purchase and use for the purposes of the pier and of this Order any lands not exceeding in the whole two acres but with respect to such lands nothing in this Order or in the Acts incorporated therewith shall exempt the Council from any indictment action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them thereon.

Power to take lands by agreement.

Grant of
 easements by
 persons under
 disability.

9.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may if he thinks fit subject to the provisions of those Acts grant to the Council any easement or right required for the purposes of this Order in or over or affecting any such lands (not being an easement or right of water in which some person other than the grantor has an interest).

(2) The provisions of the said Acts with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

Retention and
 disposal of land.

10.—(1) The Council may—

- (a) retain and hold and use for such time as they think fit any land or interest in land vested in them or acquired by them under this Order or under the Herne Bay Pier Order 1909 ;
- (b) sell lease exchange or otherwise dispose of any such land or interest no longer required for the purpose of the undertaking in such manner and for such consideration and on such terms and conditions as they think fit (whether in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of payment in any other form) ;
- (c) sell exchange or dispose of any rents reserved on the sale lease exchange or other disposition of any such land or interest ;
- (d) make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition ;
- (e) on any such exchange pay or receive money for equality of exchange :

Provided that the Council shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such land or any interest therein at a price or rent or for a consideration of a value less than the current market value of the land or interest but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any land or interest in land from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which the land or interest has been conveyed or leased to or otherwise acquired by the Council or any persons from or through whom the Council have derived title to it.

LIMITS

Limits.

11.—(1) The limits within which the Council shall have authority and within which the powers of the pier master may be exercised shall comprise the pier and an area below high-water mark within a distance of one hundred and fifty yards from any part of the pier which limits are in this Order termed the limits of this Order.

(2) The limits within which the power to levy rates may be exercised hereinafter termed "the rating limits" shall comprise the pier.

WORKS AND POWERS

12.—(1) Subject to the provisions of this Order the Council may maintain and improve the pier and in connection therewith may from time to time construct erect maintain alter and improve all necessary embankments walls locks docks gates sluices piers quays wharves jetties landing-places railways tramways cattle-pens warehouses refreshment or other buildings and rooms roads approaches offices sheds coal-tips staiths bridges cranes weighing machines engines electric and other apparatus and machinery moorings hawsers buoys lights water pipes and other works and conveniences:

Power to maintain and improve pier.

Provided that—

- (a) no line of rails or tramway constructed under this Order shall be used for the public conveyance of passengers until it has been certified by the Minister to be fit for that use;
- (b) any electric light and power or other apparatus constructed and maintained under this Order shall be so constructed used and maintained as to prevent any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line;
- (c) nothing in this Order shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1935 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

(2) The Council may with the previous consent in writing of the Minister from time to time construct and remove alter and improve groynes so as to prevent the pier and foreshore from being damaged or injured by the movement of shingle or otherwise.

13. Every person who wilfully obstructs any person acting under the authority of the Council or who pulls up or removes any buoys moorings poles posts lights beacons or other conveniences shall for every offence be liable on conviction to a penalty not exceeding five pounds and shall in addition be liable to repay to the Council any expenses incurred by them in making good such damage.

Penalty for injuring works.

14. The Council may construct and maintain on the pier and may furnish and equip fishing-platforms pavilions saloons assembly concert lecture waiting refreshment-reading and other rooms automatic-machines bicycle-stands band-stands shops bazaars kiosks aquaria lavatories baths and sanitary and other conveniences and they may also construct under the pier head and maintain floating swimming-baths and may provide passenger carrying vehicles on the pier and may make such reasonable charges as they may determine for the use of such conveniences for admission to such buildings or places and for the use of such vehicles as aforesaid.

Power to erect pavilions and other buildings.

Power to
dredge.

15.—(1) The Council may deepen dredge scour and excavate any portion of the foreshore and bed of the sea to the extent necessary to secure a sufficient waterway and approach to the pier head for vessels using the same.

(2) All sand mud and other materials dredged up or removed shall be the property of the Council and they may sell or otherwise dispose of or remove or deposit the same as they think fit:

Provided that no sand mud or other materials raised under the provisions of this section shall be deposited in any place below high-water mark of ordinary spring tides otherwise than in such a position and under such restrictions and regulations as may be fixed by the Minister.

(3) All moneys arising from any sale or other disposition of sand mud and other materials under this section after payment of the expenses connected therewith shall be deemed to form part of the pier revenue.

(4) The powers of the Council under this section shall be exercisable subject to the provisions of section 53 (Crown rights) of this Order and in particular and without prejudice to that general limitation any consent given to the exercise of such powers by the Commissioners of Crown Lands on behalf of Her Majesty may be given subject to such restrictions and conditions including the payment by the Council to the Commissioners of Crown Lands of royalties rents or sums of money in respect of materials raised from any place below high-water mark and sold by the Council under this section or in respect of any place below high-water mark upon which materials may be deposited as may be fixed by the Commissioners of Crown Lands.

Power to
purchase
dredgers etc.

16. The Council may provide purchase take on lease hire and use such steam or other dredgers eroders engines lighters or other vessels machinery and apparatus as they may think necessary for effecting the purposes of this Order and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell and dispose of the same All sums received in respect of any such letting on hire shall be deemed to form part of the revenue of the undertaking and all moneys realised by any such sale shall be applied towards carrying into effect any of the purposes of this Order to which capital is properly applicable.

RATES

Power to levy
rates.

17. The Council may within the rating limits subject and according to the provisions of this Order levy and demand for the use of the pier and the conveniences connected therewith and subject to the provisions of the Civil Aviation Act 1949 in respect of sea-planes entering or using the limits of this Order such reasonable rates as may from time to time be approved by the Minister and in respect of all other vessels persons and goods of every description

and for services described in the schedule to this Order any rates not exceeding those specified in that schedule and may receive and recover payment accordingly.

18. The Council may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Order but so that no preference be in any case given to any person over any other person using the pier under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order.

Power to vary exemptions and compound for rates.

19. The Council may (so far as the rates specified in the schedule to this Order do not extend) demand and recover such reasonable rates or other consideration as they may determine for the use of any warehouses sheds buildings yards weighing machines mooring posts cranes buoys works and conveniences belonging to or provided by the Council or in respect of any services rendered by them in connection with the pier.

Rates for services and accommodation not otherwise provided for.

20. The pier master may prevent the removal or sailing from within the limits of this Order of any vessel in respect of which or of the goods imported or exported therein any rates are payable until evidence has been produced to him of the payment of those rates to the collector.

Pier master may prevent sailing of vessels.

21. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the pier.

Exemption of lifeboat crew.

22.—(1) Notwithstanding anything contained in this Order the Council may charge for every person entering upon and using the pier between the hours of six p.m. and ten p.m. on any day on which a concert or other public entertainment (lasting for at least one and a half hours between the said hours of six p.m. and ten p.m.) is held on the pier or in any pavilion building or room for the time being on the pier any sum not exceeding sixpence.

Power to charge higher rates at certain times.

(2) Any person who having already paid the ordinary charge for using the pier remains on the pier after six p.m. on any such day as in the preceding subsection mentioned shall have credit for the sum already paid by him and shall be liable in addition thereto to pay only the difference between the special charge and the sum already paid by him as aforesaid.

(3) The Council shall notwithstanding the progress of any concert or other public entertainment reserve a sufficient passage along the pier for all persons landing or embarking at the pier or jetties and that reserved passage shall be open for use by such persons at the ordinary charge and without payment of the special rate by this section authorised so long as they use the pier as a passage only and do not remain upon it.

(4) A copy of this section shall be exhibited in print at the entrance to the pier and in some conspicuous place or places on the pier.

Power to close
pier on special
occasions.

23.—(1) The Council may on any special occasions but not on more than twelve days in any one year or for more than three days consecutively close the pier against the public and may on such occasions admit any persons to the pier on payment of such special rates of admission not exceeding one shilling for each person as the Council may determine.

(2) On all such occasions the Council shall reserve a sufficient passage along the pier between the landing steps and the shore for any persons landing or embarking at the pier the reserved passage to be open for use by those persons at the ordinary charge and without payment of any special rates so long only as they use the pier as a passage and do not remain upon it.

(3) The special rate charged under this section shall be in lieu of and not in addition to the rate specified in the schedule to this Order and any person paying the special rate shall not be liable to pay any further or other rate or sum for admission to the pier on the day for which the special rate is charged.

(4) During at least two days before the day on which the pier is to be closed the Council shall exhibit conspicuously at the entrance to the pier a notice of their intention to close the pier under this section.

Pass and family
tickets.

24.—(1) The Council may grant pass tickets or family tickets to passengers and promenaders or others for the use of the pier (either inclusive or exclusive of admission to any building or room for the time being thereon) at such rates on such terms and for such periods not exceeding one year as the Council may determine and may issue books containing any number of pass tickets at a reduced rate and day tickets available for one day or part of a day only for any number of admissions on such day or part of a day at a reduced rate but so that no preference be given to any person.

(2) The Council shall have power to prescribe reasonable conditions on which pass tickets and family tickets are issued and the persons by whom such tickets may be used.

(3) A pass ticket shall not be transferable and shall not be used by any person except the person to whom it is granted. A pass ticket or family ticket shall not be used otherwise than in accordance with the conditions on which it is issued or after the period limited for its use.

(4) There shall be printed on every pass ticket and family ticket the terms and conditions upon and subject to which the same is issued.

(5) If any person wilfully and with intent to defraud acts in any way in contravention of the provisions of this section or uses or attempts to use any false or counterfeit ticket he shall for each offence be liable to a penalty not exceeding twenty shillings.

25.—(1) If it is represented by application in writing to the Minister— Revision of rates.

- (a) by any chamber of commerce or shipping or any representative body of traders or shipowners ; or
- (b) by any person who in the opinion of the Minister has a substantial interest in the trade of the pier and is a proper person to make an application ; or
- (c) by any body representative of the users of the pier ; or
- (d) by the Council ;

that in the circumstances then existing the authorised rates should be revised in whole or in part the Minister if he thinks fit may make an order revising all or any of the authorised rates referred to in the application and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this subsection.

(2) An application made to the Minister under subsection (1) of this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application under subsection (1) of this section an order has been made or the Minister has decided not to make an order no further application for a revision of any of the rates to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall consult with such bodies or persons as aforesaid as appear to him to be appropriate including the Council where they are not the applicants and for the purpose of ascertaining such bodies or persons may require public notice of the application to be given and where an objection to an application is made by the Council or by any such body or person as aforesaid and is not withdrawn the Minister unless it appears to him that the objection is of a trivial nature shall cause an inquiry to be held in reference to the application.

(5) Subject to the proviso to this subsection the Minister shall not by an order under subsection (1) of this section make any such revision of the authorised rates as in his opinion would so far as can be estimated be likely to result in the annual revenue of the undertaking being insufficient or more than sufficient to enable the Council with efficient management of the undertaking to make adequate provision for paying all proper expenses of and connected with the working management and maintenance of the undertaking including interest on loan capital (regard being had by him to any capital which the Council may reasonably be expected to expend) making good depreciation providing for any contributions which

the Council may reasonably and properly carry to any reserve fund contingency fund or sinking fund and meeting all other costs charges and expenses if any properly chargeable to revenue:

Provided that in any case where the Minister is satisfied that there are special circumstances affecting the undertaking taking into account its financial condition during such period preceding the date on which an application is made under subsection (1) of this section as the Minister considers to be appropriate the Minister may revise the authorised rates in such manner as he thinks just and reasonable with due allowance for such special circumstances notwithstanding that such revision is likely to result in the revenue of the undertaking being insufficient to enable the Council to make adequate provision for all of the matters referred to in the foregoing provisions of this subsection.

(6) The provisions of section 40 (Inquiries by Minister) of this Order shall apply to inquiries which the Minister may cause to be held under this section.

(7) The power of the Minister to make an order under subsection (1) of this section shall be exercisable by statutory instrument.

POWERS OF SALE AND LEASING

Power to sell
undertaking.

26.—(1) The Council may with the previous consent in writing and upon such terms conditions and restrictions as may be approved by the Minister sell the undertaking or any part thereof and the purchaser to the extent authorised by his conveyance shall have and may exercise all or any of the powers conferred upon the Council by this Order or which the Council have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Council are subject and shall perform all the duties of the Council under this Order.

(2) The Council shall within one month after the date of any conveyance made under this section deposit a certified copy thereof at the Ministry of Transport and shall upon failure to do so be liable to a penalty not exceeding twenty pounds.

Power to lease
undertaking or
rates.

27.—(1) The Council may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be approved by the Minister lease to any company corporation or person (a) the undertaking or (b) the right to collect and retain the authorised rates.

(2) As from the commencement of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred upon the Council by this Order which the Council have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Council are subject and shall perform all the duties of the Council under this Order.

(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Minister and the provisions of this Order with respect to such lease or to the lessee shall apply to any such assignment or to the assignee respectively.

(4) The Council shall within one month after the date of any lease made under this section deposit a certified copy thereof at the Ministry of Transport and shall upon failure to do so be liable to a penalty not exceeding twenty pounds.

(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Council from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Order and of this Order as to the keeping delivery and audit of accounts shall apply to and be binding upon as well the lessee as the Council and all moneys received by the Council under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Order.

28. The Council may let for hire or lease for any term not exceeding seven years any pavilions rooms shops baths sheds ware-houses or other buildings separately from any other part of the undertaking to any company corporation or person upon such terms pecuniary or otherwise and under such restrictions and conditions as they may determine. Power to lease pavilions etc.

FINANCE

29.—(1) Subject to the provisions of this section the Council shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 to borrow without the consent of any sanctioning authority the sum requisite for the payment of costs charges and expenses of this Order and they shall repay any sum so borrowed within such period as they may determine not exceeding five years from the commencement of this Order. Power to borrow.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Order shall extend and apply to the borrowing of money under this section and the money so borrowed as if it were borrowed under the said Part IX and the period fixed by this section for the repayment of any money so borrowed shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) In the application of Part IX of the Local Government Act 1933 to the borrowing of further moneys for the purposes of the undertaking the Minister shall be the sanctioning authority.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

(5) All statutory borrowing powers under any Order repealed by this Order which have been exercised before the commencement of this Order and all existing securities of the Council granted issued or created thereunder shall be deemed to have been exercised granted issued or created under this Order and the provisions of this Order shall apply thereto notwithstanding anything contained in any order deed mortgage or other document to the contrary.

Periods for
repayment of
money borrowed
under
enactments
repealed.

30. All money borrowed by the Council under the provisions of any Order repealed by this Order which have not yet been repaid shall notwithstanding such repeal be repaid within the respective periods (if any) within which they are required to be repaid by or under those provisions.

Proceeds of sale
of lands to be
treated as
capital.

31. Capital money received by the Council in respect of a transaction under section 10 (Retention and disposal of land) of this Order shall be applied in such manner as the Minister of Housing and Local Government may approve in or towards the extinguishing of any loan raised by the Council for the purposes of this Order or otherwise for any purpose for which capital money may properly be applied.

Power to
contribute to
entertainments.

32. The Council may from time to time out of the pier revenue provide and pay for or contribute towards the payment of bands of music concerts or other entertainments on the pier or in the pavilions or other buildings thereon and subscribe towards the funds of any regatta or fête held in the immediate vicinity of the pier.

Separate
accounts in
respect of
undertaking.

33.—(1) The Council shall keep separate accounts of the undertaking so as to distinguish capital from revenue and as regards revenue to show under a separate heading or division on one side all receipts in respect of the undertaking (including the interest on any reserve fund which the Council may from time to time be authorised to set up when that fund amounts to the prescribed maximum) and on the other side all payments and expenses in respect of the undertaking such payments and expenses to be divided so as also to show the amounts expended in respect of each of the following purposes (that is to say):—

- (a) The working and establishment expenses and costs of the maintenance of the undertaking including therein the payment of or contribution towards a band of music playing on the pier and the provision of concerts or entertainments thereupon and subscribing towards the funds of any regatta or fête held in the immediate vicinity of the pier;
- (b) The interest on money borrowed by the Council for the purposes of or in connection with the undertaking or used for those purposes under any enactment;
- (c) The requisite appropriations instalments or sinking fund payments in respect of any money so borrowed or used as aforesaid;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue;

(e) The amount (if any) paid to any reserve fund which the Council may from time to time be authorised to set up ;
and

(f) Any money expended on any of the purposes mentioned in section 34 (Application of revenue of undertaking) of this Order.

(2) The Council shall show in their accounts relating to the undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

(3) The Council shall also so far as may be reasonably practicable carry to the debit or credit of the accounts of the undertaking a proper proportion of their general administrative expenses and of any receipts credits payments or liabilities which from time to time ought to be so apportioned and carried.

34. If in respect of any financial year the moneys received by the Council on account of the pier revenue shall exceed the moneys expended or applied by the Council in respect of the undertaking for the several purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the last preceding section the Council (if they think fit) may in respect of that year apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

Application of
revenue of
undertaking.

(1) in reduction of capital moneys borrowed for the purposes of the undertaking ;

(2) in the renewal construction extension or improvement of any works and conveniences for the purposes of the undertaking or in payment of any expenses in respect of the undertaking which might otherwise have been defrayed out of capital moneys ;

(3) in or towards any reserve fund provided in respect of the undertaking pursuant to section 36 (Reserve fund) of this Order.

35. All charges on pier revenue which that revenue may be insufficient to defray shall be charged on and paid out of the general rate fund and the Council shall include in the general rate the amount (if any) which it is estimated may be required to cover the deficiency accruing during the currency of the rate and also the amount (if any) which is required to make up any deficiency which has occurred during any previous period.

Deficiency of
revenue to be
charged on.
general rate
fund.

36.—(1) The Council may (if they think fit) provide a reserve fund in respect of the undertaking by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in statutory securities until the fund so formed amounts to the maximum reserve fund from time to time prescribed by the Council.

Reserve fund.

(2) Any reserve fund provided under this section may be applied—

- (a) in making good to the general rate fund any deficiency at any time happening in the income of the Council from the undertaking ; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Council in respect of the undertaking ; or
- (c) in or towards the payment of the cost of renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof ;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to a reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

Annual account
to be sent to
Minister.

37. The Council shall within three months of the close of their financial year or such longer period as the Minister may allow send to the Minister a copy of the annual accounts of the undertaking.

BYELAWS

Byelaws.

38.—(1) The byelaws which may from time to time be made by the Council in exercise of the powers on that behalf conferred on them by section 83 of the Harbours Clauses Act 1847 may provide for the imposing of a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

(2) As respects byelaws made under this Order the confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be the Minister.

Appointment of
officers to
enforce byelaws
and regulations.

39. The Council may appoint officers for securing the observance of the byelaws and regulations made by the Council under this Order in respect of the pier.

INQUIRIES

Inquiries by
Minister.

40. The Minister may cause to be held such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred or imposed upon him and the giving of any consent or approval or the making of any order or the confirmation of any byelaw under this Order and section 290 of the Local Government Act 1933 shall apply to such inquiries as if they were an inquiry held in pursuance of subsection (1) of that section.

LIFE-SAVING APPARATUS

Provision for
life-saving
apparatus.

41.—(1) The Council shall whenever required by the Minister provide at their own expense within the period specified by and to the satisfaction of the Minister a site near the pier and build on that site a house or other proper accommodation for a lifeboat rocket apparatus and other life-saving apparatus.

(2) If the Council fail to comply with this section they shall be liable to a penalty not exceeding ten pounds for every month during which the failure continues.

42. The officers of the coastguard and all other persons for the time being actually employed in connection with the lifeboat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the pier spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the pier. Life-saving apparatus may be attached to pier.

43. The Council shall at all times keep at convenient places on the pier and in obedience to any requirements which may be made by the Minister lifebuoys and lifelines in good order and fit and ready for use. Lifebuoys to be kept.

WRECKS

44.—(1) Whenever any vessel is sunk stranded or abandoned in or near any approach to the pier the Council may if they think fit cause the vessel or any part thereof to be raised removed blown up or destroyed. Removal of sunk stranded or abandoned vessels.

(2) The Council may cause any such vessel and the furniture and tackle and apparel thereof or any part thereof respectively which shall be raised or salved and also all or any part of the cargo goods chattels and effects which may be raised or salved from any such vessel to be sold in any such manner as they may think fit and out of the proceeds of sale may reimburse themselves for the expenses incurred by them under this section and also for any expenses incurred by them in marking buoying watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of the sale in trust for the persons entitled thereto:

Provided that the Council shall before selling any such cargo goods chattels or effects as aforesaid pay all duties and purchase tax payable to Her Majesty in respect of the cargo goods chattels or effects to be sold and they may retain the amount of the duties and purchase tax so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of the sale are insufficient to reimburse the Council for the aforesaid expenses and duties and purchase tax the Council may recover the deficiency or in case of an appeal under subsection (4) of this section such sum as is awarded by the arbitrator to be payable in respect of the deficiency from the owner of any such vessel either summarily as a civil debt where the amount recoverable does not exceed twenty pounds or as a debt in any court of competent jurisdiction.

(4) If on demand being made under this section for payment of any deficiency the owner of the vessel is dissatisfied with the amount demanded he may within fourteen days after the receipt

of the demand appeal to the Minister who shall appoint an arbitrator to determine and award whether any and if so what sum is payable in respect of the deficiency and the award of the arbitrator appointed by the Minister that no sum is payable or as to the sum payable as the case may be shall be conclusive and binding on both parties. The costs of the appeal and the award shall be in the absolute discretion of the arbitrator and he shall award and order how those costs are to be borne and paid and any costs so awarded and ordered to be paid by either party may be recovered by the other party in the same manner as the sum payable in respect of the deficiency is recoverable under subsection (3) of this section.

(5) The Council shall (except in any case which in their opinion is a case of emergency) before raising removing blowing up or destroying any vessel under the provisions of this section give to the owner of the vessel twenty-four hours' notice of their intention so to do and if within twelve hours after the expiration of such notice the owner gives to the Council notice in writing of his intention himself to raise and remove the vessel he shall be at liberty to do so in lieu of the Council:

Provided that if the owner gives any such notice as last aforesaid—

- (a) he shall in raising or removing the vessel comply with any directions which may from time to time be given to him by or on behalf of the Council for the purpose of preventing interference with navigation; and
- (b) he shall forthwith after giving such notice commence and shall with all diligent dispatch proceed with and complete the raising or removal of the vessel;

and if such raising or removal be not completed within seven days after the giving of such notice by the owner such notice shall be null and void and the Council shall be at liberty to cause the vessel to be raised removed blown up or destroyed in accordance with the provisions of this section as if the owner had not given such notice.

(6) The Council shall (except in any case which in their opinion is a case of emergency or when required by the owner to sell) before selling any vessel or any part thereof or any part of the cargo goods chattels and effects thereof under the provisions of this section give to the owner seven days' notice of their intention so to do.

(7) Any notice given by the Council pursuant to subsection (5) or subsection (6) of this section shall be given by delivering the same to the owner or by posting a prepaid letter addressed to the owner at the place in the United Kingdom where he carries on business or at his last known place of abode in the United Kingdom or if the owner or his place of business or abode is not known to the Council then by exhibiting such notice at the principal office of the Council for twenty-four hours in the case of a notice given under the said subsection (5) or for seven days in the case of a notice given under the said subsection (6).

(8) In this and the following section the expression—

“owner” in relation to any vessel sunk stranded or abandoned as aforesaid means the owner of the vessel at the time of the sinking stranding or abandonment thereof ;

“vessel” includes a seaplane and other aircraft.

(9) The powers conferred on the Council by this section shall be in addition to and not in derogation of any other powers exercisable by them for or with respect to the removal of wrecks.

(10) Except for the purpose of removing any obstruction to the harbour nothing in this section shall entitle the Council to remove any wreck (as defined in section 510 of the Merchant Shipping Act 1894) to the prejudice or in derogation of the rights with respect to such wreck of the receiver of wreck under the provisions of Part IX of the said Merchant Shipping Act and if the Council shall for any such purpose as aforesaid remove any such wreck they shall (without prejudice to the rights of sale conferred upon them by the foregoing provisions of this section) hold and dispose of the same or any such surplus of the proceeds of sale thereof as is referred to in subsection (2) of this section in accordance with such directions (if any) as may be given to them by the said receiver.

(11) For the removal of doubt it is expressly provided that nothing in this section shall apply to any vessel belonging to Her Majesty or held by any person on behalf of or for the benefit of the Crown nor shall any of the powers conferred by this section be exercised if by such exercise the Crown would become liable directly or indirectly otherwise than as an insurer or reinsurer under a contract of insurance or reinsurance for any expenses incurred by the Council except where such consent is given as is provided for in section 45 (As to vessels in which the Crown have an interest) of this Order and the vessel was not such a vessel as aforesaid at any such time as is mentioned in subsection (8) of this section.

45.—(1) The Council shall before taking possession of raising removing blowing up or destroying any vessel sunk stranded or abandoned under the powers conferred upon them by this Order or by any other enactment give to the Admiralty and to the Minister notice in writing of their intention so to do and if within fourteen days after the receipt of such notice the Admiralty or the Minister gives to the Council—

As to vessels in which Crown have an interest.

(a) a certificate that the vessel was sunk stranded or abandoned by a person acting on behalf of Her Majesty or otherwise by an officer or servant of the Crown acting in the course of his duty as such and that it is not in the national interest that the Council should take possession of the vessel or that the vessel should be raised removed or blown up or destroyed ; or

(b) a notice that the exercise by the Council of the rights of recovery conferred by subsection (2) of section 44 (Removal of sunk stranded or abandoned vessels) of this Order would

render the Crown liable directly or indirectly otherwise than as an insurer or reinsurer under a contract of insurance or reinsurance for all or a substantial proportion of the expense incurred by the Council ;

the Council shall not without the consent in writing of the authority by whom the certificate was issued or the notice given take possession of raise remove blow up or destroy such vessel :

Provided that in any case which in their opinion is a case of emergency the Council may take possession of raise remove blow up or destroy any vessel without giving notice of their intention so to do to the Admiralty or to the Minister and in that event the Council shall not be entitled to recover from any person the expenses incurred by them in so doing if the effect of such recovery would be to render the Crown so liable.

(2) If the Council shall mark light watch buoy control or give warning to shipping of the presence of any vessel in respect of which the Admiralty or the Minister have refused their consent under subsection (1) of this section the Council shall not be entitled to recover the expenses of so doing from the owner of the vessel.

LIGHTS

Permanent lights
on works.

46.—(1) The Council shall at the outer extremity of the pier exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House of Deptford Strond shall from time to time direct.

(2) If the Council fail to comply in any respect with the provisions of this section they shall be liable to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding forty shillings for every day on which after conviction thereof they so fail.

Provision
against danger
to navigation.

47.—(1) In case of injury to or destruction or decay of the pier or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Council shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House of Deptford Strond and shall apply to that Corporation for directions as to the means to be taken.

(2) If the Council fail to comply in any respect with the provisions of this section they shall be liable to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding twenty shillings for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

MISCELLANEOUS

48. Notwithstanding anything in this Order any cables pipes or wires to be laid or placed under the powers of this Order by the Council on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides shall be laid or placed at such depth under or such height over the tidal waters or tidal lands as the Minister may require.

Cables pipes or wires under or across tidal waters.

49. The Council shall have the appointment of meters and weighers within the limits of this Order.

Meters and weighers.

50.—(1) All penalties and forfeitures recoverable under this Order or any byelaw made in pursuance of section 83 of the Harbours Clauses Act 1847 may be recovered in a summary manner.

Recovery of penalties.

(2) Any costs or expenses recoverable as aforesaid may be recovered summarily as civil debts where the amount recoverable does not exceed twenty pounds.

51. Officers of the Ministry of Transport British sea-fishery officers and police officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the pier without payment.

Officers exempt from rates.

52. The Council shall within the limits of this Order be a local lighthouse authority for the purposes of the Merchant Shipping Act 1894.

Local lighthouse authority.

53. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Commissioners of Crown Lands without the consent in writing of the Commissioners of Crown Lands on behalf of Her Majesty first had and obtained for that purpose.

Crown rights.

54. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for town and country planning.

55. The pier shall be deemed for all purposes to be within the parish and urban district of Herne Bay.

Pier to be within district of Herne Bay.

56. As from the commencement of this Order the following enactments are hereby repealed:—

Repeal.

The unrepealed provisions of the Herne Bay Pier Order 1896 ;

The Herne Bay Pier Order 1909.

57. All costs charges and expenses of and incident to the preparing and obtaining of this Order and otherwise incurred in reference thereto (as taxed by the proper officer) shall be paid by the Council.

Costs of Order.

The SCHEDULE referred to in the foregoing Order

I. RATES ON VESSELS ANCHORING OR MOORING AT THE PIER

	<i>Per registered ton</i>
	<i>£ s. d.</i>
For every vessel under 50 tons	8
„ „ „ of 50 tons and under 100 tons ...	10
„ „ „ of 100 tons and upwards	1 0

II. RATES FOR USE OF PIER

For every passenger or other person landing on the pier from or embarking from it on board of any ship vessel boat packet or passage boat for each time any sum not exceeding	6
For every person using the pier for the purpose of walking for exercise pleasure or any other purpose except for bathing for each time any sum not exceeding	6
For every person using the pier for fishing for each time any sum not exceeding	6
For every bath-chair (including attendant) taken on the pier for each time any sum not exceeding	8
For every perambulator (including attendant) taken on the pier for each time any sum not exceeding	6
For every bicycle taken on the pier for each time any sum not exceeding	6
For every person using the pier for the purpose of bathing any sum not exceeding	8
For every master of any vessel boat or wherry using the pier for the purpose of going to or returning from his own vessel boat or wherry an annual sum not exceeding	2 0 0

III. RATES FOR GOODS SHIPPED OR UNSHIPPED AT THE PIER

Light goods	per cubic foot	2
Heavy goods	per ton	4 0

In charging the rates on goods the gross weight or measurement of all goods to be taken and for any less weights measures and quantities than those above specified a portion of the respective rates shall be charged.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845	8 & 9 Vict. c. 18.
Harbours Docks and Piers Clauses Act 1847 ...	10 & 11 Vict. c. 27.
General Pier and Harbour Act 1861	24 & 25 Vict. c. 45.
Local Loans Act 1875	38 & 39 Vict. c. 83.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Electric Lighting Act 1882... ..	45 & 46 Vict. c. 56.
Merchant Shipping Act 1894	57 & 58 Vict. c. 60.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Local Authorities Loans Act 1945	8 & 9 Geo. 6. c. 18.
Town and Country Planning Act 1947	10 & 11 Geo. 6. c. 51.
Civil Aviation Act 1949	12 13 & 14 Geo. 6. c. 67.

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